Commentary
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All-Belarusian People's Assembly Becomes Central Pillar for Political Transition in Belarus

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Summary

The All-Belarusian People's Assembly has become the central body in overseeing any political transition in Belarus. A closer examination of recent constitutional amendments and new laws indicates that a transition is already underway.

On 24 and 25 April, the All-Belarusian People's Assembly (ABPA) was convened in Minsk. The session was arguably the most important event in Belarus's domestic politics thus far for 2024. It was already the seventh convocation of this institution since its inception in 1996, but the first meeting in its new constitutional status. According to the latest amendments to the Belarusian Constitution, adopted in February 2022, the ABPA has become the central pillar of the country's political system. This novelty, alongside a few other internal developments of recent years, amounts to a highly consequential transformation of Belarus's governance model.

The amended constitution calls the ABPA "the highest representative body of the people's power of the Republic of Belarus that determines the strategic directions of the development for society and the state and ensures the inviolability of the constitutional system, the continuous link between generations and civil accord". In other words, the assembly is becoming the key instrument for a general transition of power in Belarus, which looks to take place in the coming years.

Four specific powers assigned to the ABPA highlight the latest constitutional changes and the assembly's new strategic role in Belarusian politics. *First*, the ABPA now has the final say on appointing and dismissing key officials in the judicial system, specifically chairs, deputy chairs, and judges of the Constitutional and Supreme courts. *Second*, the assembly has the decisive word on electing and dismissing the chair and members of the

Central Electoral Commission. *Third*, it decides on the removal of the president from office in the event of systemic or gross violations of the constitution or if the president has committed high treason or another serious crime. *Finally*, the ABPA's decisions are binding and can annul legal acts and any decisions by other state bodies and officials that the assembly deems contradict national security interests, except for court decisions.

> The amended constitution leaves no doubt that, if a hypothetical domestic political crisis breaks out in Belarus, the ABPA will have the upper hand in resolving it by enforcing its own political agenda.

The assembly is now more powerful than any other body, including the president, who enjoyed supreme and unparalleled powers in the Belarusian political system from 1996 to 2022.

The ABPA holds other important prerogatives as well, including the authority to consider the legitimacy of elections and declare a state of emergency or martial law. Yet, the above four powers appear most noteworthy as they effectively turn the assembly into an insurance mechanism against any unwanted political changes in the hands of those who control it. This is precisely the rationale behind the assembly's constitutional novelties, which President Alyaksandr Lukashenka explained in his opening address at the recent ABPA session.

Lukashenka has now been elected the assembly's chairperson. In addition to his likely intention to run again in next year's presidential elections, many Belarus watchers have concluded that the ABPA is an instrument of freezing the political status quo. As a Western diplomat put it to this author, "*So what about the long-promised political transition, when will it finally begin?*".

Those observers who expected Lukashenka to step down as president or that another person would be elected as the assembly's chair must have been disillusioned. If Lukashenka's status is seen as the only criterion for a political transition in Belarus, then clearly, no change is happening for the time being. It is dubious, however, to consider that such a transition should be defined by this criterion only.

> If anything, the incumbent's departure from the presidential post will be the result of a transition, not its beginning.

Between now and then, the transition will acquire a more specific form, in which different actors will try to shape the outcome, though the entire process is certainly structured in a way that suits the interests of the incumbent.

A broader look at some of the latest developments in Belarus's political system points to an ongoing transformation. This process began already in February 2021 when the sixth convocation of the ABPA announced plans for numerous political changes. Following its decisions, in March 2021, the Constitutional Commission was set up and tasked with amending the constitution. The commission's endeavours resulted in the February 2022 referendum and significant revisions of Belarus's governance structure.

Besides the constitutional changes, at least two other developments in recent years are worth additional attention in the context of Belarus's preparations for a transition of power. In May 2021, Lukashenka signed a decree on the "protection of sovereignty and the constitutional order". The document regulates the functioning of the country's government in case "the head of state is killed as a result of an assassination, terrorist act, external aggression, or other violent actions." It gives the key role to the Security Council and prescribes that all decisions be adopted by anonymous voting. Arguably, anonymous decision-making is meant to complicate attempts by foreign states and non-state actors to influence votes. These regulations have now been incorporated into the amended constitution.

> Another important but largely overlooked development relates to the gradually changing role and possibilities of political parties in Belarus.

Until recently, political parties, both pro-government and opposition, had a purely decorative status in the political system. Their development was significantly constrained, and they almost never won representation in the national or regional legislatures. Since 2021, Minsk has taken a different stance, liquidating most of the previously registered political parties while preserving a few that share the government's political platform. Importantly, the government declined the idea of creating a single governing party (similar to United Russia in contemporary Russia or the Communist Party in the Soviet Union).

Instead, they approved the preservation of several parties representing different segments along the political spectrum. While their ideological differences are hardly visible today and do not matter in policymaking, the decision signals a possible longer-term desire to start developing a functioning party system as an element of a political transition. Following the recent parliamentary elections, more than half of the members

of the Belarusian parliament's lower chamber now represent political parties. Over time, those parties (and potential new ones) will have to stress their ideological differences as a means of real political competition.

Thus, the Belarusian political transition has already started. The political system is already different from how it looked prior to 2020, when "no institutions should stand between the people and the president" was its unofficial motto. Further progress will depend on numerous factors and developments but primarily on the future of regional security and how attentive various Belarusian stakeholders are to the opportunities that this government-led transition opens.

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